SUBSIDIARY LEGISLATION 364.13

REMISSION OF INTEREST AND PENALTIES RULES

5th June, 2015

LEGAL NOTICE 180 of 2015.

Citation.

1. The title of these rules is the Remission of Interest and Penalties Rules.

Remission.

Cap. 364

2. The Commissioner may, at his discretion, remit wholly or in part any interest and penalty chargeable on any person under the provisions of the Duty on Documents and Transfers Act, hereinafter referred to as "the Act":

Provided that the Commissioner may only remit such interest and penalty if he is satisfied that the duty due was not paid within the prescribed period due to a reasonable cause, sohowever that reliance placed on any other person to perform any task shall not constitute a reasonable excuse.

Conditions.

3. (1) The Commissioner may impose any condition that he may consider appropriate for any remission under rule 2, including the requirement that the person concerned shall not make a default or omission within such period as the Commissioner may establish or that the said person shall make a payment of duty in such amount and within such time as the Commissioner may determine.

(2) Should any condition imposed by the Commissioner in accordance with the provisions of sub-rule (1) be infringed by the person concerned, any remission of interest and penalties granted by the Commissioner shall be forfeited.

(3) The Commissioner shall communicate in writing to the person concerned any condition imposed under sub-rule (1) the consequences of an infringement of any such condition in accordance with sub-rule (2) and, when such is the case, the fact that forfeiture has been incurred.

(4) The use of the Commissioner's discretion under this rule shall not be questioned in any appeal.

Stay of interest and penalties.

4. Interest and penalties chargeable under the provisions of the Act on the amount of duty payable under a payment plan not exceeding two years shall cease to be incurred from the date a person enters into such payment plan:

Provided that if the remission is not effected due to non-compliance with the provisions of rule 2, the interest and penalties shall be charged as if they had never ceased.

Set-off.

5. Where a person has benefitted from a remission of interest and penalties under these rules, the Commissioner may deduct the equivalent amount of such remitted interest and penalties from any interest and penalties on any refund of duty which may become due

to that person within six (6) years from the date of remission of interest and penalties under these rules.

Disclaimer.

6. Nothing in these rules shall entitle any person to claim any refund of any amount whatsoever in respect of interest and penalties already paid to the Commissioner under the provisions of the Act.